

for it is the misprision of the clerk, which doth not change the issue. *Vide* 11 H. 7. 1 b. 10 H. 7. 25 a. b. and so it was adjudged in 2 H. 4. 6. a. *Vide* 39 E. 3. Br. 105. (b) 7 E. 4. 15. *Vide* after, when misprision of the clerk in the entry of the verdict of judgment, which are other parts of the record, shall be amended. As to (word) that has been explained before.

As to this word (plea) that has been explained before in the word (record) which includes it.

As to (c) (warrant of attorney) † see 23 Hen. 8. Amendment 85. 24 Hen. 8. Amendment 47. 2 Ma. Dyer (d) 105. 2 Eliz. Dyer (e) 180. 5 Eliz. Dyer (f) 225. 6 Eliz. Dyer (g) 231. But when no warrant of attorney is put in, it is not remedied by this Act. As to panel and return, in what cases misprisions of them shall be amended within this stat. *vide* (h) 2 E. 4. 7 a. b. 9 E. 4. 14 a. 33 H. 6. 42. after the sheriff is removed or dead, &c. 37 H. 6. 12. 3 H. 7. 14. 12 H. 7. 19. But no return is not helped by this statute.

And it is to be observed, that (i) those things which are amendable before the writ of error brought are amendable after the writ brought: and if the (k) Inferior Court doth not amend them, the Superior Court may amend them.

It is necessary now to shew two things; 1. What things are not amendable by this Act of H. 6. 2. How many of them, not remedied by this Act, are remedied by other statutes. As to the first, this Act of 8 H. 6. c. 12. nor the Act of 8 H. 6. c. 15. do not extend to 14 misprisions. They do not extend to want of an original (g), but to misprision of the clerks, as [162 b] is aforesaid in an original. 2. They do not extend to misprision of (l) form in the original, either false Latin, or variance from the register. 3. They do not extend to a material variance betwixt the original and the count. 4. They do not extend to insufficient trial, *scil.* when the venue is mistaken: but misprision of the clerk in the entry of the (m) verdict shall be amended in another term, according to the note found by the jurors: so was it adjudged in *Rawlin's case* in the Fourth Part of my Reports 29 & 30 Eliz. 52 b. 5. They do not extend to a jury returned by the coroners, where the sheriff ought to return it, or *e contra*. *Vide* *Bainham's case*, in the Fifth Part of my Reports, fol. 36 b. *Vide* 21 & 22 Eliz. Dyer. 367. 6. They do not extend to a trial where no return is endorsed on the *venire facias*, (a) *Rowland's case* in the Fifth Part of my Reports, Mich. 35 & 36 El. fol. 41 b. 7. They do not extend to a trial, where one appears who was not returned on the *venire facias*. *The Countess of Ruland's case*, in the Fifth Part of my Reports, folio 42. 8. They do not extend to a return of the *venire facias* without the † name of the sheriff. 9. They do not extend to a jeofail, want of colour, insufficient pleading, or to any other default of the party, or of his counsel. 27 H. 6. 10. 18 E. 4. 3. 20 E. 4. 6. 11 H. 6. 28.

(b) *Antea* 157 a. Fitz. Amend. 51. Br. Amend. 71.

(c) Palm. 231. B. N. C. 43.

† 23 Hen. 8. Br. Amen. 85. *in medio*. 24 H. 8. Br. Amendment 47. *in fine*.

(d) Dyer 105. pl. 16. 1 Roll. 289. 1 Roll. Rep. 16.

(e) Dyer 188. pl. 48. 1 Roll. 290. *Vide* 92 H. 8. c. 30. and 28 Eliz. c. 14.

(f) Dyer 225. pl. 34. 1 Roll. 290.

(g) Dyer 230, 231, pl. 58. 1 Roll. 290. 1 Roll. Rep. 305.

(h) Fitz. Amendment 48. Br. Amendm. 67.

(i) 2 Roll. Rep. 253. Willes 7. Tidd's Practice, 770. 8th ed. 2 Chitt. Rep. 22.

(k) 2 Roll. Rep. 253.

(g) In *Carr v. Shaw*, 7 T. R. 299. Lord Kenyon C.J. said, "that there was no doubt but even an original might be amended on an application to the Master of the Rolls, though it could not be amended in the Court of K. B. That, when he was Master of the Rolls, he had known several instances of the kind; and that before he was Master of the Rolls, an original had been supplied, even in the case of a penal action brought by Sir R. Bampfylde on the game laws."

(l) 5 Co. 45 a.

(m) Palm. 260. Salk. 53.

(a) 5 Co. 41 b. 42 a.

† Palm. 151, 152.